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Case Number: BC718405 Hearing Date: August 5, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

BC718405

JEFF

MOSES VS ROK DRINKS LTD ET AL

August

5, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S RENEWED MOTION FOR ATTORNEY FEES AND COSTS ON REMAND FROM THE COURT
OF APPEAL.

RULING:

The Court grants the
Motion, as prayed.

Plaintiff

JEFF MOSES is awarded attorneys' fees in the total amount of \$1,278,893.75, and costs in the sum of \$3,140.59, against Defendants ROK DRINKS, LTD and ROK STARS PLC.

Plaintiff to give notice.

I.

BACKGROUND

JEFF MOSES (Plaintiff) filed
this lawsuit against ROK DRINKS, LTD., ROK STARS PLC, and JOHNATHAN KENDRICK
(Defendants), alleging the following causes of action in the Second Amended
Complaint (SAC):

1. BREACH OF WRITTEN CONTRACT [AGAINST ROK
DRINKS AND ROK STARS];
2. BREACH OF IMPLIED-IN-FACT CONTRACT [AGAINST
ROK DRINKS AND ROK STARS];
3. BREACH OF THE IMPLIED COVENANT OF GOOD
FAITH AND FAIR DEALING [AGAINST ROK DRINKS AND ROK STARS];
4. QUANTUM VALEBANT/QUASI-CONTRACT [AGAINST
ROK DRINKS AND ROK STARS];
5. PROMISSORY ESTOPPEL [AGAINST ALL
DEFENDANTS];
6. FRAUD [AGAINST ALL DEFENDANTS];
7. NEGLIGENT MISREPRESENTATION [AGAINST ALL
DEFENDANTS];
8. VIOLATION OF CAL. BUS. & PROF. C. §

17200 ET SEQ. [AGAINST ALL DEFENDANTS];

9. INTENTIONAL INTERFERENCE WITH PROSPECTIVE
ECONOMIC RELATIONS [AGAINST ALL DEFENDANTS]; and

10. NEGLIGENT INTERFERENCE WITH PROSPECTIVE
ECONOMIC ADVANTAGE [AGAINST ALL DEFENDANTS].

Plaintiff alleges that
Defendants refused to comply with their contractual obligations to compensate
Plaintiff for a trademark and other related assets.

After a jury trial, on
June 17, 2024, the Court filed a Further Amended Judgment as to Plaintiff and
Defendants ROK DRINKS LTD. and ROK STARS PLC.

On May 11, 2026, Los
Angeles Superior Court filed a Remittitur with an unpublished Opinion reversing
Orders, based upon some aspects of the previously assigned Judge's attorneys'
fees rulings, and remanding for the calculation of Plaintiff's attorneys' fees amounts.
Specifically, per page 16 of the opinion, the matter was "remanded for the
trial court to calculate Moses's attorney fees." There are no other directions given
to follow. After an appeal and remittitur, trial courts are authorized to act
solely in accordance with the directions of the reviewing court, and any other
ruling is void. (MHC Financing Ltd.
Partnership Two v. City of Santee (2010) 182 Cal.App.4th 1169, 1175, fn.4; Karlsen v. Superior Court (2006) 139
Cal.App.4th 1526, 1530.)

On June 3, 2026, Plaintiff
filed the Motion for Attorneys' Fees, requesting these amounts: 1)
\$1,239,762.50 in attorney's fees incurred at the trial court level, 2)
\$39,131.25 in attorney's fees incurred on appeal, and 3) \$3,140.59 in costs
incurred on appeal.

Defendants ROK DRINKS,
LTD and ROK STARS PLC oppose, advocating denial or reduced amounts, as not
being reasonably incurred.

II.
LEGAL STANDARD

In supporting attorneys' fees motions, "there is no required level of detail that counsel must achieve." (Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 699.) "Block billing occurs when 'a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.' " (Mountjoy v. Bank of Am., N.A. (2016) 245 Cal.App.4th 266, 279.) Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.)

"[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board Of Trustees Of California State Etc. (2005) 132 Cal.App.4th 359, 396 [deciding it was an abuse of discretion to completely disregard counsel's time records based upon finding numerous instances of overlapping work].)

"In determining what constitutes a reasonable attorney fee when a contract or statute provides for such an award, courts should consider the nature of the litigation, its difficulty, the amount involved, and the skill required and success of the attorney's efforts, his or her learning, age and experience in the particular type of work demanded, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed." (Contractors Labor Pool, Inc. v. Westway Contractors, Inc. (1997) 53 Cal.App.4th 152, 168.)

"An across-the-board reduction in hours claimed based on the percentage of total time entries that were flawed, without respect to the number of hours that were actually included in the flawed entries, is not a legitimate basis for determining a reasonable attorney fee award." (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 282.) An across-the-board percentage reduction in attorney fees may not be a legitimate basis for determining attorney fee awards, except where the reduction reflects a determination of fees reasonably incurred. (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 39-40.)

Attorneys'

collaboration and division in creating work product, does not necessarily amount to noncompensable duplication, unless otherwise evidenced. (Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 562. Cf. McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 698, 703 [reversing a judge's denial of fees based on instances of duplicative work].)

As for overstaffing, a

court "indicated a fee reduction was warranted because it was unreasonable to have so many lawyers staffing a ... case that did not present complex or unique issues, did not involve discovery motions, and did not go to trial." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 253.) "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 39.)

In calculating a

reasonable value of attorney services and hourly rates, courts may consider their knowledge and familiarity with the legal market, the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation, affidavits from attorneys regarding prevailing fees in the community, and rate determinations of other cases. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) Judges are not required to award the lower market rate of attorneys' fees, and may have discretion to determine that the actual rate charged was reasonable. (Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.) Based on an undisputed record, a trial court's award of \$550 per hour was lower than the comparable, market rate for similarly experienced attorneys in the area, and thus the order was reversible. (See Caldera v. Dept. of Corrections & Rehab. (2020) 48 Cal.App.5th 601, 611.) A "trial court properly determined the market rate for experienced appellate lawyers in Los Angeles County ..." and

reduced the hourly rate for one of the partners. (*Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1058-1059.) For purposes of determining a reasonable hourly rate for attorneys' fees, the "relevant 'community' is generally based on where the services are rendered, i.e., where the court is located." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.)

Support services, including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (*City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7.) As to parties prevailing in an action on a contract with terms for recovery of attorney fees and costs, counsel's disbursement costs, such as secretarial, copying, telephone, expert fees and travel, are recoverable as a part of attorney fees, "if they represent expenses ordinarily billed to a client and are not included in the overhead component of counsel's hourly rate." (*Bussey v. Affleck* (1st Dist. 1990) 225 Cal.App.3d 1162, 1166-1167 ("*Bussey*"), abrogated by *Hsu v. Semiconductor Sys., Inc.* (2005) 126 Cal.App.4th 1330, 1342 [noting split of authority]. But see, e.g., *Benson v. Kwikset Corp.* (4th Dist. 2007) 152 Cal.App.4th 1254, 1283 [recognizing split of authority]; *Fairchild v. Park* (2d Dist. 2001) 90 Cal.App.4th 919, 930 [disagreeing with *Bussey* opinion, and following view that attorney fees and expenses are distinctly different by statute]; *Robert L. Cloud & Assocs., Inc. v. Mikesell* (1st Dist. 1999) 69 Cal.App.4th 1141, 1154 ["attorney fees do not include expenses...."].)

The determination of a reasonable amount of attorney fees is within the sound discretion of trial courts. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Akins v. Enterprise Rent-A-Car Co.* (2000) 79 Cal.App.4th 1127, 1134.)

III.

ANALYSIS

In the Reply, Plaintiff represents that:

1.

The Court of Appeal remanded the matter for a required determination of the amount of fees.

2.

The hours worked, tasks performed, and hourly rates, are established by exhibits with the Motion and declarations in the Court's record since 2023.

3. The

Opposition is accompanied by no evidence to meet the Defendants' burden to challenge specific items beyond just making generalized arguments and assertions.

4.

The fees correlate with this case pending since 2018 until Plaintiff's successful Judgment.

5.

Two attorneys handled the case over eight years, through demurrer, extensive discovery matters, a jury trial, post-trial motions, and appellate proceedings.

6.

The attorneys did not duplicate tasks but collaborated and did complementary work.

7.

The hourly billing rates have been consistently the same Los Angeles market rate-- \$875 and \$575.

8.

An across-the-board reduction percentage is unauthorized by law.

9.

Even where there is a contingency fee agreement, the prevailing party is entitled to reasonable attorney fees (Nightingale v. Hyundai Motor Am. (1994) 31 Cal.App.4th 99, 105, fn.6).

10.

References to attorneys doing clerical work were incidental, minimal, and efficient.

11.

The Opposition says nothing about Plaintiff's attorney's fees on appeal.

Defendants ROK DRINKS, LTD and ROK STARS PLC advance the following main points:

1.

The billing records demonstrate excessive duplication and overstaffing.

2.

The fee request includes excessive attorney conferencing and internal communications.

3.

The records reflect clerical and administrative tasks improperly billed as attorneys' fees.

4.

Extensive block billing prevents meaningful review of the claimed hours.

5.

The records reflect a lack of billing judgment.

6.

An across-the-board reduction is appropriate.

"

'In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (Lunada Biomedical v.

Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.) Parties opposing motions for attorneys' fees fail to show any abuse of discretion where they merely contend that amounts of attorneys' fees are excessive without providing a specific analysis or factual support. (Mallard v. Progressive Choice Ins. Co. (2010) 188 Cal.App.4th 531, 545; Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1376 [an "'assertion [that] is unaccompanied by any citation to the record or any explanation of which fees were unreasonable or duplicative' is insufficient to disturb the trial court's discretionary award of attorney fees."]; Maughan v. Google Technology, Inc. (2006) 143 Cal.App.4th 1242, 1250; Avikian v. Wtc Fin. Corp. (2002) 98 Cal.App.4th 1108, 1119; Premier, supra, 163 Cal.App.4th at p. 560 [emphasizing that opposing parties "submitted no evidence that the hours claimed by counsel were excessive," and declining to "declare as a matter of law that the hours were unreasonable"]; Villanueva v. City of Colton (2008) 160 Cal.App.4th 1188, 1204 [opposing party "offered no evidence of any kind which might have warranted a reduced fee award."].)

Here, the Opposition is accompanied by no evidence to meet the burden to disprove any specified fee items. Primarily, it contains unsupported, broad-sweeping assertions, as illustrated by this excerpt: "Plaintiff seeks to recover a whopping \$1.2 million in attorneys' fees based on inflated, improperly block billed time entries that are riddled with charges for clerical tasks, wholly unreasonable duplicative work (arising in part from blatant overstaffing), and excessive hourly rates for purported time that, due to the contingency agreement in place, was never actually billed to Plaintiff." (Opposition, 1:3-7.)

As for the unsupported and generalized assertions in the Opposition referencing Plaintiff's own evidence, the Court has reviewed Plaintiff's billing documentation with the two Declarations filed on June 3, 2026, and observes that the proof is sufficiently detailed in descriptions to ascertain that all claimed hours are reasonable. And any instances of block billing are relatively few amongst the many other entries in the billing records, and they mostly involve logically interrelated subject matters. (See Opposition, 7:13-28.)

That only two attorneys worked on the same subject matters or work product, does not necessarily equate with overstaffing or attorneys' duplicating the specific contributions. (See, Opposition, 4:20-5:19.) The issue of overstaffing typically has involved

debates over five-to-seven attorneys billing.

The Court lacks sufficient information of the substance of internal conferences to soundly decide that they were excessive. (See Opposition, 5:20-6:10.) Moreover, the cited federal trial court rulings do not govern in California courts. California appellate courts are not bound to follow decisions of lower federal courts. (People v. Superior Court (2002) 103 Cal.App.4th 409, 431.)

Further, the Court finds that the billing rates are reasonable and commonly charged in this locality.

Next, courts do not routinely apply an across-the-board percentage, but restrict that to determining the hours reasonably incurred, whereas Defendants suggested random percentages of 40-to-60 percent. (See, Opposition, 8:25-9:12.)

In summary, while the amounts involved are high compared to most cases, this action is uniquely aged, it having been filed in 2018. Further, it has been hotly litigated by both sides, often in great detail, and has involved days of trial after some extensive rulings requiring increased attorney and judicial time investments into this case. Indeed, the official Court docket has 58 computer screens for this case, far exceeding the number of docket pages in almost all other cases.

IV.

CONCLUSION

Therefore, the Court grants the Motion, as prayed.